

****May 17, 2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed an investigation in March 2022 regarding the operator MAYR MELNHOF PACKAGING ROMANIA S.R.L. and found violations of the provisions of Article 5 paragraph (1) letters b) and c), paragraph (2), and Article 6 of the General Data Protection Regulation. As such, the operator was sanctioned with an administrative fine in the amount of 7,421.10 lei (equivalent to 1,500 EURO).

The investigation was initiated following a complaint, which reported that within the company's premises, in the area designated for dining and in the smoking area, surveillance cameras were installed.

During the investigation, it was found that the operator MAYR MELNHOF PACKAGING ROMANIA S.R.L. had a system of surveillance cameras installed, and some of these cameras monitored the dining room and the smoking area.

Thus, it was determined that the operator excessively monitors employees in the dining room and smoking areas, in relation to the stated purpose of ensuring the health and safety of employees and the security of property.

In this context, it was found that the images were not processed in an appropriate, relevant, and limited manner to what is necessary concerning the purposes for which they are processed (the principle of data minimization), which constitutes a violation of the provisions of Article 5 paragraph (1) letters b) and c), paragraph (2), and Article 6 of the General Data Protection Regulation.

At the same time, during the investigation, the operator was also subjected to two corrective measures, namely:

- to ensure the compliance of personal data processing operations in video monitoring activities, respecting the principle of "data minimization," in relation to Article 5 paragraph (1) letter c) of the General Data Protection Regulation;
- to reanalyze the capturing of video images so that the activities of the company's employees in smoking areas and in the dining area are not monitored.